

IN THE CIRCUIT COURT OF BENTON COUNTY, MISSOURI

NSI 6, LLC,

Plaintiff,

v.

Case No. 26BE-CC00056

BENTON COUNTY, MISSOURI,

STEVE DALESKE, in his official capacity
as Presiding Commissioner of
Benton County, Missouri,

SCOTT HARMS, in his official capacity as
North Side District Commissioner of
Benton County, Missouri, and

LARRY BERRY, in his official capacity as
South Side District Commissioner of
Benton County, Missouri,

Defendants.

**PLAINTIFF'S OBJECTION TO USE OF VIDEO AND MICROPHONES FOR THE
SEPTEMBER 21, 2026 HEARING**

COMES NOW Plaintiff, by and through its undersigned counsel, and objects to the use of any and all video cameras, microphones, or any other devices for the purpose of reproduction of the Show Cause Hearing set for September 21, 2026, aside from those used by the Court. In support thereof, Plaintiff states and avers as follows:

1. This case involves Plaintiff's challenge to an Order and Ordinance Enacting a Temporary Moratorium on Data Centers Within Benton County, Missouri for Purposes of Due Diligence (the "Moratorium"). The Moratorium creates a blanket prohibition on all data center construction and operation countywide. Plaintiff alleges in its Petition that the Moratorium is void and unenforceable due to the fact that no statutory authority exists for Benton County to enact the Moratorium, nor does any planning and zoning regime exist to enable such a Moratorium.

2. On September 2, 2026, Plaintiff presented evidence in support of its Motion for Temporary Restraining Order ("TRO") that it would experience irreparable harm if the County was not restrained from enforcing the Moratorium. Following the hearing, the Court granted Plaintiff its requested TRO on September 8, 2026.

3. At the September 2, 2026 hearing, it became apparent that there was significant interest from the public in the case. More than 100 people watched the hearing and many voiced their opinions regarding data centers both during and after the hearing. It is anticipated that as many, if not more, people will attend the Show Cause Hearing set for September 21, 2026.

4. Since the September 2, 2026 hearing, Plaintiff has closed on its contract to purchase the property and commenced groundwork on the construction of the data center.

5. It is anticipated that Defendants' counsel will inquire into confidential information surrounding the data center project as he did at the TRO hearing, including but not limited to the identity of contractors working on the project, the identity of investors in the project, and the identity of entities who might lease the data center. It is critical that this information remain confidential and the use of video in the courtroom during the September 21, 2026 hearing will only heighten the threat that confidential information is shared with the public at large and unnecessarily jeopardize the safety and security of such persons, not to mention the witnesses who may testify at the hearing.

6. It is further anticipated that testimony and exhibits concerning the location and infrastructure of the data center may be presented at the September 21, 2026 hearing. Permitting video of this evidence and testimony and exposing it to the public at large creates the risk that security on the premises of the data center may be breached.

7. Further, evidence at the September 21, 2026 hearing may include data center operating methods, capacity planning, customer configurations, pricing, infrastructure designs, energy-procurement strategies, reliability metrics, expansion plans, and proprietary processes. This information could create concrete competitive harm to Plaintiff and should be protected by this Court. *In re Iowa Freedom of Information Council*, 724 F.2d 658 (8th Cir. 1984).

8. Finally, the Court will be in a position at the September 21, 2026 hearing to determine whether certain information should be prohibited from disclosure as confidential or otherwise inadmissible. To determine whether certain information should be disclosed at the hearing, the Court will potentially need to consider what the information actually is. If video is allowed during that consideration, then the purpose of withholding such information will be defeated due to the information being recorded and broadcast to the public at large.

WHEREFORE, Plaintiff requests that the Court prohibit the use of video recording, microphones or any other devices by anyone other than the Court for the purpose of reproduction of the Show Cause Hearing set for September 21, 2026, and for any other and further relief the Court deems appropriate in the circumstances.

LOWTHER JOHNSON
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By: /s/ Megan N. C. Russell

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CERTIFICATE OF SERVICE

The undersigned certifies that on the 15th day of September, 2026, I electronically filed the foregoing with the Clerk of the Court using the Missouri eFiling System which sent notification of such filing via electronic mail to all counsel of record.

/s/ Megan N. C. Russell

Megan N. C. Russell #69235